

dissolved corporations for predissolution activities. (*Penasquitos, supra*, 53 Cal.3d at 1190.) “Participating in a judicial resolution of such claims is part of the winding-up process.” (*Id.*)

Accordingly, Cross Complainants meet their burden of presenting a triable issue of material fact. The Court **DENIES** the motion.

#### **IV. Sanctions**

Cross Complainants asserts Cross Defendants’ motion improperly relies on a depublished opinion that must not be cited or relied upon, and the Court should disregard it and consider sanctions.

As previously discussed, Cross Defendants reference *Mongols Nation Motorcycle Club, Inc., supra*, 208 Cal.App.4th 124, but this is a depublished case and cannot be cited or relied on by courts or parties. (Cal. Rules of Court, rule 8.1115.) However, Cross Defendants acknowledge the depublished case cannot be cited or relied on. (Opp., pg. 9:3-4.)

The Court **DECLINES** to rule on sanctions as Cross Complainants provide no statutory basis to impose sanctions

#### **4.**

| <b>CASE #</b> | <b>CASE NAME</b> | <b>HEARING NAME</b>                 |
|---------------|------------------|-------------------------------------|
| CVRI2502151   | LATHAM vs BLANCO | MOTION TO VACATE ORDER OF DISMISSAL |

#### **Tentative Ruling:**

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

##### **1. Mistake, Inadvertence, Surprise or Neglect**

The grounds for relief under the discretionary and mandatory provisions of CCP §473(b) are identical (“mistake, inadvertence, surprise”) except for one distinction: whereas only “excusable” neglect is a basis for relief under the discretionary provision, any neglect is a basis for relief under the mandatory provision. Thus, where an attorney affidavit of fault is filed, relief must be granted even where the default results from inexcusable neglect by the defendant’s attorney. *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 CA4th 868, 897, 102 CR3d 140, 163.

Pursuant to the Court’s reading of the declaration of counsel, Gavril Gabriel, the Court is satisfied that the dismissal was due to the neglect of counsel. Accordingly, the motion to set aside the 2/20/2026 dismissal is granted.

The Court sets the matter for a Case Management Conference on 10/27/2026 at 8:30 a.m. in Department 6. The Court set the matter for an OSC as to why sanctions of up to \$1,500 or a